

CHILD RIGHTS AND PROTECTION

(Text-book based on the syllabus Introduced for the
B.Ed. Degree Course by the Tamil Nadu Teacher Education
University from the year 2023-24)

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SRIRAM PUBLISHERS

(Solai K.S. A/C Mini Hall Ground Floor)
33/5, Dr. Radhakrishnan Salai, Alwarthirunagar,
Valasaravakkam, Chennai - 600 087
Phone : (044) 4867 7383 Mobile : 98401 58595

Publication No. : 77
First Edition : April, 2024
Re Print : April, 2025
Copy Right (C) : Sriram Publishers, Chennai - 87

Price : Rs. 320/-

Typeset by : **Jayam Grafix**

Jafferkanpet, Chennai - 600 083.

Printed at : **Maha Agencies**

V.M. Street, Chennai - 600 014.

PREFACE

This text book titled “**CHILD RIGHTS AND PROTECTION**” has been written based on the Syllabus for B.Ed. Course of the Tamil Nadu Teacher Education University Chennai introduced from the academic year 2023-2024. The five units of this subject has been discussed in detail under the following five heads:

- Unit – I Concept of Child Rights**
- Unit – II Violence Against Children**
- Unit – III Child Rights – Laws, Policies and Institutions**
- Unit – IV Child Friendly Schools and Role of Teachers**
- Unit – V Skills for Child Protection and Participation**

To facilitate the easy understanding of the subject by the teacher-trainees, the contents have been presented under different headings and sub-headings. As of our previous works, this book is also written in a lucid style with vivid and apt examples. To help students prepare for their examinations, review questions covering the entire content with the expected answers for the same cited in the book, have been provided at the end of each unit. Two Model Question Papers based on the University examination pattern, have been provided at the end of this book with the expected answers for the same cited in the book.

I am grateful to **Dr. S. Natarajan**, former Professor of Education, IASE, Chennai – 15 who helped me a lot in bringing out this book. I am thankful to **Mr. C.R. Manivasagan, M.Com., M.Ed.**, former Office Superintendent of Meston College of Education, Chennai – 14, for collecting information from many sources and contributing as co-author of this book

and also for his pains taking efforts in proof reading this book and **Maha Agencies** for neatly printing this book.

While preparing this book, we have referred several articles in the internet and made use of some of them in this book. We gratefully acknowledge the sources and express our sincere thanks for the same.

Constructive suggestions are quite welcome to refine this book further. I earnestly solicit the continued support of teacher-educators and student-teachers, as they have been offering for my previous works. It will be highly satisfying to me if this book proves useful in the hands of student community.



Chennai

(Dr.K. Nagarajan)

26.04.2024

Review Questions are categorised under Objective, Short-Answer and Essay Type

1. Essay type-questions are to be answered in about 5 pages.
2. Short Answer type questions are to be answered in about 2 ½ pages.

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UNIT - I CONCEPT OF CHILD RIGHTS

1:00 Introduction

Children are one of the most vulnerable sections of any society. Violation of the rights of children is a complex process, as multiple factors are at play. To provide protection against violations, the legal framework provides children with legislative support. The different legislations in India define children differently. Some may see children as independent agents who can take responsible decisions about themselves and their lives, while still others may consider them wholly dependent on adults for survival and decisions about life.

In this Unit, Concept and definition of child and child rights, Definition of child under various law in India, History of child rights in Tamil Nadu and India, Non-Governmental Organisations (NGOs) working for child rights in Tamil Nadu and India, Historic treatment of children, Understanding child rights from the perspective of affected people, Importance and need to the rights of children, United Nations Convention on the Rights of the

Child (UNCRC), The Millennium Development Goals (MDGs) and the Sustainable Development Goals (SDGs) and Children's rights and sustainable development goals are taken up for detailed discussion.

1:01 Concept and Definition of Child and Child Rights

1:01:1 Concept and Definition of Child

Etymologically, the term "Child" comes from the Latin word **infans** which means "the one who does not speak". In the biological sense, a child is usually defined as a person between birth and puberty or between the developmental period of infancy and puberty. Legally, the term child may refer to anyone below the age of the majority or some other age limit as prescribed by the laws of the respective countries.

The term 'child' may also refer to some one below another legally defined age limit unconnected to the age of majority. In Singapore, for example, a child is legally defined as some one under the age of 14, under the "Children and Young Persons Act" whereas the age of majority is 21. In the U.S. Immigration

Law, a child refers to any one who is under the age of 21.

The **United Nations Convention on the Rights of the Child** defines child as, "A human being below the age of 18 years unless under the law applicable to the child, majority is attained earlier". This is ratified by 192 of 194 member countries of U.N.O. Thus, according to International Law, a child means every human being below the age of 18 years.

1:01:2 Concept and Definition of Child Rights

Children's rights are human rights. They protect the child as a human being. As human rights, children's rights are constituted by fundamental guarantees and essential human rights. Children's rights recognize fundamental guarantees to all human beings: the right to life, non-discrimination principle, right to dignity through the protection of physical and mental integrity.

The rights of all children are laid out in the 54 Articles of the **United Nations Convention on the Rights of the Child (UNCRC)**. The Convention lays out the Civil, Political, Social, Cultural and

Economic rights that all children who are under the age of 18, are entitled to and the responsibilities of governments and adults to ensure these rights are upheld. All rights are linked, and no right is considered more important than another.

Significant features of the UNCRC are: They apply to both girls and boys up to the age of 18, even if they are married or already have children of their own. **They are guided by the principles of 'Best Interest of the Child' and 'Non-discrimination and Respect for views of the Child'.** They emphasise the importance of the family and the need to create an environment that is conducive to the healthy growth and development of children. They obligate the State to respect and ensure that children get a fair and equitable deal in society.

They draw attention to the following four sets of Civil, Political, Social, Cultural and Economic rights viz. **i) Survival ii) Protection iii) Development and iv) Participation.**

i) Right to Survival: These rights include: Right to Life, Highest attainable Standard of Life, Nutrition, Adequate Standard of living and a name and nationality.

- ii) Right to Protection:** These rights include: Freedom from exploitation, Freedom from abuse, Freedom from inhuman or degrading treatment, Freedom from neglect and Special protection in special situations such as emergency, armed conflicts and in the case of disability etc.
- iii) Right to Development:** These rights include: Right to Education, Right to support for early childhood care and development, Right to social security and Right to leisure, recreation and cultural activities.
- iv) Right to Participation:** These rights include: Right to respect for the views of the child, Right to freedom of expression, Right to access to appropriate information and Right to Freedom of thought, conscience and religion.

1:01:3 Child Rights in India

All people under the age of 18 are entitled to the standards and rights guaranteed by the laws that govern our country and the international legal instruments we have accepted by ratifying them.

- The Constitution of India guarantees all children certain rights, which have been specifically included for them.

- Right to free and compulsory elementary education for all children in the age group 6-14 (Article 21A).
- Right to be protected from any hazardous employment till the age of 14 years (Article 24).
- Right to be protected from being abused and forced by economic necessity to enter occupations unsuited to their age or strength [Article 39(e)].
- Right to equal opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity and guaranteed protection of childhood and youth against exploitation and against moral and material abandonment [Article 39(f)].

Besides these they also have rights as equal citizens of India, just as any other adult male or female.

- Right to equality (Article 14).
- Right against discrimination (Article 15).
- Right to personal liberty and due process of law (Article 21).

- Right to being protected from being trafficked and forced into bonded labour (Article 23).
- Right of weaker sections of the people to be protected from social injustice and all forms of exploitation (Article 46).
- Besides the Constitution, there are several laws that specially apply to children.

1:02 Definition of 'Child' under Various Laws in India

In India, different laws related to children, define 'child' differently. Some specific child related legislations in India, which define the term child are given below :

Section 2(ii) of The Child Labour (Protection and Regulation) Act, 1986 states that "child means a person who has not completed his fourteenth year of age. This Act aims at prohibiting the engagement of children in work. Therefore, this Act makes provisions for the persons who have not completed their fourteenth year of age.

According to Section 2(c) of The Plantations Labour Act, 1951, "child means a person who has not completed his fifteenth year." This Act has

been formed for the welfare of people who are engaged in plantation. Section 24 of the Act further categorises young children and states that "no child who has not completed his twelfth year shall be required or allowed to work in any plantation."

The Motor Transport Workers Act, 1961 which aims at regulation of conditions of work of motor transport workers, defines child as "a person who has not completed his fifteenth year." Section 21 of the Act prohibits the employment of a "child" in motor transport undertaking.

According to Section 2(b) of The Beedi and Cigar Workers (Conditions of Employment) Act, 1966, "Child means a person who has not completed fourteen years of age." This Act makes provisions for the welfare of the workers who are engaged in beedi and cigar manufacturing institutions. Section 24 of the Act says that, "No child is required or allowed to work in any industry premises."

Definition of child in The Prohibitions of Child Marriage Act, 2006 is, "child means a person who, if a male, has not completed twenty-one years of age, and if a female, has not completed eighteen years of age." The main objective of this Act is to

prevent child marriages and Section 3 of the Act makes the child marriage void at the option of a person who was a child at the time of marriage.

Child according to The Juvenile Justice (Care and Protection of Children) Act, 2015 "means a person who has not completed eighteen years of age." Juvenile Justice Act makes provisions for the welfare and developmental needs of the juveniles. A person who has not completed eighteen years of age is given the status of child under this Act and therefore, it is applicable to them. However, **a significant change was introduced in the Act of 2015, which stipulates that juveniles aged between 16 and 17 would be tried as adults, if they were charged with heinous crimes.** This is in the aftermath of the **Nirbaya Case**, where one of the prepatrators was a juvenile.

Section 2(d) of The Protection of Children from sexual offences Act, 2012 states that, "child means any person below the age of eighteen years." This Act simply aims to protect the children from sexual offences and harassment.

1:03 History of Child Rights in Tamilnadu and India

1:03:1 History of Child Rights in Tamil Nadu

The State of Tamil Nadu recognizes that every child has equal rights to learning, knowledge and education. The State also reaffirms its commitment to its responsibility to make available an enabling setting conducive to the educational requirement and well-being of the child on par with international standards.

Following are the steps initiated by the Government of Tamilnadu to protect the children's Right such as Right to life, Right to education etc.

1992 – Chief Minister's Girl Child Protection Scheme

The Chief Minister's Girl Child Protection Scheme, introduced by the then Hon'ble Chief Minister of TamilNadu in 1992, is a pioneering and path-breaking scheme for the welfare of girl child. The Girl Child Protection Scheme is aimed at preventing gender discrimination by empowering and protecting rights of girl children through direct investment from Government.

The scheme aims to:

- ✦ Promote enrolment and retention of the girl child in school and to ensure her education at least up to intermediate level.
- ✦ Encourage girls to get married only after the age of 18 years.
- ✦ Encourage parents to adopt family planning norm with two girl children.
- ✦ Protect the rights of the girl child and provide social and empowerment to girl child.
- ✦ Strengthen the role of the family in improving the status of the girl child.

1994 - Tamil Nadu Compulsory Education Act was passed which received the assent of the President on the 21st November 1995. The following provisions were made in this Act.

(i) Elementary education to be compulsory:

- 1) Subject to the provisions of this Act, elementary education shall be compulsory for every child of school age.
- 2) For giving effect to the provisions of sub-section (1), the Government shall provide such number

of elementary schools in the State with trained teachers, as may be considered necessary.

(ii) Duty of every parent or guardian of a child of school age:

It shall be the duty of every parent or guardian of a child of school age to cause such child to attend an elementary school.

(iii) Exemptions:

Attendance at an elementary school for a child of school age shall not be compulsory.

2003 - Corporal punishment was abolished in schools

2011 - Tamil Nadu Right of Children to Free and Compulsory Education Rules, 2011-Notified

2012 - Tamil Nadu Commission for Protection of Child Rights Rules notified

2021 - Tamil Nadu State Policy for Children

Tamil Nadu Commission for Protection of Child Rights

In the year 1974, the National Policy for Children, has recognized that programme for Children should

find prominent place in national plans for the Development of Human Resources. On 11.12.1992, the Indian Government have acceded to the Convention on the Rights of the Child (CRC), underlining the intent for secure of every child and the inherent right to be a child, have also adopted the National Charter for Children 2003 on 09.02.2004.

The State Government is providing free and Compulsory Education to all Children of the age group from 6 to 14 years under the Right to Children for Free and Compulsory Education Act 2009 and preventing the employment of children below the age of 14 years in factories, mines or hazardous occupations under the Child Labour (Prohibition and Regulation) Act 1986 and also ensuring the protection of constitutional and legal rights of the Children with a commitment to provide the opportunity and facilities to the development of Children in a healthy atmosphere with required freedom.

Subsequently, the Central Government have enacted the Commissions for Protection of Child Rights Act 2005, and thereby providing the constitution of NCPDR (**National Commission for**

Protection of Child Rights) and SCPCRs (State Commissions for Protection of Child Rights).

In the above context, the **Tamil Nadu Commission for Protection of Child Rights** (TNCPCR) has been formed vide G.O. (Ms) No.45, Social Welfare and Nutritious Meal Programme (SW8) Department, dated 28.03.2012, as per section 17 (1) of the Commissions for Protection of Child Rights Act 2005, and from 18.01.2013, the TNCPCR has been functioning effectively.

Moreover, as per the Central Government's Commissions for Protection of Child Rights Act 2005, the Tamil Nadu Government have framed the TNCPCR Rules under the Commissions for Protection of Child Rights Act 2005, vide G.O. (Ms) No.202, Social Welfare and Nutritious Meal Programme (SW8) Department, dated 27.06.2012 and the same has been published in Government Gazette.

1. The Tamil Nadu Child Rights Protection Network was formed at the State-Level Consultation on Strategies for the Promotion and Protection of Child Rights in Tamil Nadu at Chennai on February 9th and 10th. Delegates participated

included representatives of women organisations, dalit and teachers organisations, trade unions, human rights activists and voluntary organisations from 18 districts.

2. Tamil Nadu Child Rights Protection Network was formed with a 42-member committee representing 16 districts and an Advisory Committee. Campaigns and Networks, NGO groups and others joined the Committee.
3. On 30 June 2001, the First State Level Co-ordination Committee was held at Chennai to finalise a Plan of Action. 20 member organisations participated in the meeting from 14 districts. HRF was asked to convene the forum.
 - ◆ Pre-implementation of all child welfare/Rights Acts in force.
 - ◆ Recommending the relevant Government Departments and institutions to resolve the child rights issues.
 - ◆ Submitting annual report on activities of Commission to the State Government as per the Section 23 of the Commissions for Protection of Child Rights Act, 2005.

1:03:1:01 Tamil Nadu State Policy for Children, 2021

Child welfare and development are paramount concerns for any society, and the Government of Tamil Nadu has taken significant strides in this direction with its comprehensive **Tamil Nadu State Policy for Children (TNSPC) of 2021**. While the state has made commendable progress in various indicators, **it acknowledges that certain challenges persist, such as child marriage, child labour, crimes against children, and juvenile delinquency**. This policy is a crucial step towards addressing these issues and ensuring the well-being and safety of Tamil Nadu's children.

The TNSPC is firmly rooted in international standards, deriving its guiding principles from the **UN Convention on the Rights of the Child (UNCRC)**, the National Policy for Children 2013, the National Plan of Action 2016, and the UN's 2030 Agenda for Sustainable Development. This comprehensive approach underscores the state's commitment to safeguarding children's rights and well-being.

The overarching vision of the TNSPC is to ensure holistic development within a secure environment for every child, empowering them to reach their full potential and achieve the Sustainable Development Goals (SDGs).

With a mission to protect children from violence, abuse, and exploitation, the TNSPC aims to provide access to quality healthcare and education, enable children to express their opinions, and uphold the principle of "Leave no one behind."

Midday Meal Scheme

Midday Meal Scheme was introduced in Tamil Nadu to Improve the effectiveness of primary education by improving the nutritional status of children thereby reducing malnutrition, attract children from disadvantaged sections, especially girls from Dalits and Adivasi tribes to school, thereby increasing attendance, reducing dropout rates and to promote a feeling of oneness and secularism amongst various different religions and cultures. The history of Midday Meal Scheme in schools is presented below:

1920 - World's first Midday Meal Scheme was started in Chennai

- 1956** - The then Chief Minister Mr.K.Kamaraj introduced a scheme to provide noon-meal to poor children in all Pachayath Schools in the State.
- 1982** - Puratchi Thalaivar MGR Nutritious Meal Programme was introduced.
- 1989** - The then Chief Minister Kalaignar M. Karunanidhi introduced the provision of boiled egg every fortnight.
- 2013** - The then Chief Minister Selvi J.Jyalalithaa introduced variety meals with masala eggs.
- 2023** - The present Chief Minister Mr. M.K. Stalin introduced free breakfast scheme.

1:03:2 History of Child Rights in India

From the ancient days, the Indian culture has been based on traditional values of sacrifice, mercy, donation, non-violence and equality. The principles of human rights are rooted in the Indian philosophy. It was only during the twentieth century that the concept of children's rights emerged. Numerous factors including age of child, gender of child, their caste and kinship led to the biased behaviour against children in India.

Second World War caused indescribable sufferings to children across the globe. United Nations on 11 December 1946 established a specialised agency - **The United Nations International Children's Emergency Fund (UNICEF)** with a directive to provide care and protection to the children of the entire world. In October 1953, the mandate of UNICEF was changed to provide for long-term assistance as deprived children resulting from economic and political turmoil due to war. **Presently UNICEF is known as United Nations Children's Fund.**

UNICEF has been operating in India since 1949. Since then UNICEF has been an active partner of the Government in organizing various programmes and activities for growth and development of children in India. Government of India in collaboration with UNICEF run various programmes to support child rights, rights of teenagers and women for their basic survival, all round growth, upliftment, constant participation and most importantly their protection by reducing inequities based on caste, customs, gender, financial status, region or religion prevailing in society.

Following are some of the most important child related legislations in India:

1. The Factories Act of 1948 amended in 1986 as the Child Labour Act and then again amended as Child Labour (Prohibition and Regulation) Act of 2016.
2. Immoral Traffic Prevention Act, 1986.
3. The Child Marriage Prohibition Act, 2006.
4. The Right of Children to Compulsory and Free Education Act, 2009.
5. The Juvenile Justice Act of 1986 amended in 2000, 2006, 2011 and finally the Juvenile Justice (Care and Protection of Children) Act, 2015 and
6. Protection of Children from Sexual Offences Act 2012 (POCSO)

Besides, our Constitution guarantees the following specific rights for the children.

- Right to free and compulsory elementary education for all children in the age group 6-14 (Article 21-A).
- Right to be protected from any hazardous employment till the age of 14 years (Article 24).

- Right to be protected from being abused and forced by economic necessity to enter occupations unsuited to their age or strength [Article 39(e)].
- Right to equal opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity and guaranteed protection of childhood and youth against exploitation and against moral and material abandonment [Article 39(f)].
- Right to early childhood care and education to all children until they complete the age of six years (Article 45).

The **Declaration of the Rights of the Child (DRC) was endorsed and adopted by the United Nations General Assembly in 1959**. India confirmed and accepted the UNCRC in December 1992.

The core of child protection legislation for children is enshrined in four main laws. Important Milestones in the Genesis of Child Rights are:

1. The Apprentice Act, 1850, the first law in India to cater special needs of children within the criminal justice apparatus.

2. The Reformatories Schools Act, 1897 which separated children from adults for the first time in India in the Criminal justice system.
3. The Madras Children Act, 1920 was introduced following the recommendations of the Indian Jails Committee 1919-1920.
4. In 1974, India formulated its first **"National Policy for Children"** (NPC).
5. The Juvenile Justice Act, enacted in 1986, was the first juvenile law in India.
6. The Child Labour (Prohibition and Regulation) Act, 1986.
7. India adopted the World Declaration for Survival, Protection and Development of children adopted by the UN General Assembly on 20th November 1989.
8. India ratified the UNCRC on 11th December, 1992.
9. National Human Rights Commission, which is an autonomous statutory body, was established on 12th October, 1993, under the provisions of The Protection of Human Rights Act, 1993.

10. The Government of India appointed an Expert Committee under the chairmanship on **Justice V R Krishna Iyer** for drafting the **"National Commission for Children Bill 2000"**.
11. The Supreme Court of India banned corporal punishment for children on December 1, 2000.
12. In early 2006 the **Department of Women and Child Development** became a full-fledged Ministry and child protection matters were transferred to this new ministry.
13. The Juvenile Justice Act was further amended in 2006 as the Juvenile Justice (Care Protection of Children) Amendment Act, 2006 and again in 2011.
14. Government enacted the Commissions for Protection of Child Rights Act, 2005, which was notified in the Gazette of India on 20th January, 2006.
15. National Commission for Protection of Child Rights (NCPCR) was constituted on 31st July, 2006.
16. Government of India enacted the Prohibition of Child Marriages Act, 2006 (PCMA), which came into effect from 1st November, 2007.

17. Integrated Child Protection Scheme (ICPS) was launched by the Ministry of Women and Child Development, Government of India on 26th February, 2009.
18. The Right of Children to Free and Compulsory Education (RTE) Act, 2009, came into force with effect from 1st April, 2010.
19. Guidelines governing adoption of Children in India were formulated in 2011.
20. The Protection of Children from Sexual Offences Act (POCSO) 2012 was enacted.
21. The Union Cabinet of India on 18th April, 2013 approved the National Policy for Children.

1:04 Non-Governmental Organisations Working for Child Rights in Tamil Nadu and India

1:04:1 Non-Governmental Organisations Working for Child Rights in Tamil Nadu

A non-governmental organization (NGO) is a voluntary group or institution with social mission, which operates independently of any government. It is usually a non-profit organisation.

Following are the some leading NGOs working in Tamil Nadu towards child rights.

1. Centre for Child Rights and Development

Centre for Child Rights and Development (CCRD) was established in the year 1988 in Chennai. The Board of Trustees consists of five members who all have a long experience and expertise on human rights, child rights and sustainable development issues.

As a partner Organisation of ICCO/Kerkinactic - The Netherlands since 2002, CCRD has been implementing programmes as a child rights organisation to support NGO's, Campaigns & Networks of Child Rights and the Government of Tamil Nadu, by providing Capacity Enhancement Trainings along with documentation and information dissemination services, including its effective implementation. This support from ICCO / kerkinactic over the years has enabled CCRD to establish itself as a "Resource Centre for Child Rights" at the State level supporting NGO's working in different districts of Tamil Nadu.

2. The Hand in Hand

The NGO known as Hand in Hand is located at Kancheepuram in Tamil Nadu. Their main

motive is to abolish child labour and provide refuge and education to neglected women and children in society.

3. Eureka Child

Eureka Child is an NGO which provides quality education to kids belonging to weaker sections of society. Their aim is to provide free books, play kits, writing materials, food, etc. to the children in rural areas. They provide training in Tamil language, English, maths, and science for the children.

4. Sri Sakthi Trust

Sri Sakthi Trust started in 2001 is located in Dindigul in Tamil Nadu. Its motto is to create consciousness among the rural public about physical cleanliness, the importance of education besides other social activities.

5. Kaakkum Karangal

Kaakkum Karangal is an NGO located in Chennai that began operations in 1992. Their main aim is to provide refuge for old persons and street children. They provide medical aid to people who need them. Also, they provide education to children and employment training programmes for all to earn and live. They help kids living in the streets

and give them bathing kits consists of a toothbrush, toothpaste, comb, soap, shampoo, dresses, etc.

6. Bhumi

The NGO **Bhumi** has a large number of young volunteers. Their aim is to provide education to orphan children in under-developed areas.

7. Mithra

Mithra is one of the popular NGOs for mentally and physically challenged persons in Chennai and it was founded in 1977. They provide free education up to the age of 16.

8. Agaram Foundation

Agaram is an NGO founded by **Tamil Film Actor Surya**, in Chennai in 2006. They provide student scholarships to needy and eligible children. They provide free training programmes for the aptitude and personality development of poor children.

9. Save the Children

Based in London, this international NGO works to improve the lives of children through healthcare, education, emergency aid, economic development, and more.

10. Amar Seva Sangam

It is a premier organization in disability control concentrating on rural areas, located in Ayikudy Village in Tirunelveli District in South Tamil Nadu. Their approach is to build a centralized resource centre to catalyse innovation in differently-abled and intellectually challenged development. They do this by including the village community in the process.

11. EKAM Foundation

The foundation of 'EKAM Foundation' lies in the belief that every child has the freedom to live and none should be denied the right to healthcare. Thus, they are committed to the healthcare of neonates, children, adolescents, and mothers from underprivileged communities.

12. Annai Charitable & Educational Trust

Annai Charitable & Educational Trust came into existence with the hard work of like-minded individuals headed by Mr. T. Joseph Xavier and Mrs. C. Amala Nayagi. They were passionate about rendering their services to the less privileged, under-privileged, oppressed, women, children and disabled.

1:04:2 Non-Governmental Organisations Working for the Child-Rights in India

1. Save The Children

Save the Children is a global non-profit organization that was founded in the year 1919. Save the Children believes that every child deserves the best chance for a bright future and that's why they are fiercely committed to ensuring that children not only survive but thrive. They run programmes in the remotest corners of India and urban areas to provide quality education and healthcare, protection from harm and abuse, and life-saving aid during emergencies, to children. Globally, '**Save the children**' is present in more than 80 countries and works to improve the lives of the most vulnerable children living there.

2. CRY (Child Rights and You)

At CRY, they are committed to their vision for a happy, healthy, and creative childhood for every child. They include ensuring children in CRY-supported projects have access to free and quality education, primary healthcare and are safe from violence, abuse, and exploitation. They also work

towards reducing the rate of child malnutrition and make sure children's voices are recognized in issues that affect them.

3. CHF (Child Help Foundation)

Founded in 2010, Child Help Foundation (CHF) is child-centric, national non-profit organization committed to fulfillment of Child Rights as enshrined in the Indian Constitution and UNCRC (United Nation Convention on the Rights of the Child). The NGO has Pan India Operations and is championing the cause of Health, with greater focus on medical emergency support for Children, Quality Education, Access to clean water and Sanitation and Zero hunger. Its mission is to save lives of Children, eradicating hunger, detection and treatment of malnutrition, and responding to emergency situations caused by natural disasters. Its mission is to inspire and empower people in the culture of giving into changing the lives of the children in need and bringing smiles on their faces.

4. Smile Foundation

Smile Foundation is an NGO in India directly benefiting over 7,50,000 children and their families every year, through more than 350 live welfare

projects on education, healthcare, livelihood, and women empowerment, in over 1000 remote villages and slums across 25 states of India. The NGO believes that education is both the means as well as the end to a better life: the means because it empowers an individual to earn his/her livelihood and the end because it increases one's awareness on a range of issues - from healthcare to appropriate social behaviour to understanding one's rights and in the process help him/her evolve as a better citizen.

5. Pratham Education Foundation

Pratham is an innovative learning organization created to improve the quality of education in India. Established in 1995 to provide education to children in the slums of Mumbai, Pratham has grown in both scope and scale, with programmes today reaching children and youth across the country. As one of the largest non-governmental organizations in the country, Pratham focuses on high-quality, low-cost, and replicable interventions to address gaps in the education system. Working directly with children and youth as well as through large-scale collaborations with government systems, Pratham programmes reach millions of

lives every year. Pratham's **Teaching at the Right level** (TaRL) approach has demonstrated a proven impact on children's learning outcomes and is now being adapted to contexts outside India.

6. The Akshaya Patra Foundation (TAPF)

The Akshaya Patra Foundation is a non-profit organisation that operates on a public-private partnership (PPP) model. Since Akshaya Patra acts as an implementing partner of the Mid-Day Meal Scheme, there is firm support from the Government of India, the State Governments and associated organisations. The organisation is highly transparent and makes available not only the financial information but also intellectual property to the public. Akshaya Patra believes that there is a dire need for the school lunch programme to be replicated so that it realises the vision that "No child in India shall be deprived of education because of hunger."

7. Katha

Started in 1988 with a magazine for children from the underserved communities, Katha's work spans the literacy to literature continuum. By seamlessly connecting grassroots work in

education and urban resurgence, Katha brings children living in poverty into reading and quality education. Over the past three decades, through its many programmes, Katha has helped over ane million children help themselves out of poverty. Katha has several programmes in place to help check poverty across the country.

8. KC Mahindra Education Trust (Nanhi Kali)

Project Nanhi Kali provides 360-degree support to underprivileged girls from Class 1-10, with the objective of enabling them to complete their schooling with dignity. The project provides daily academic support as well as an annual school supplies kit, which allows the girls to attend school with dignity. The team works extensively with the families of the girls and community stakeholders to sensitize them towards the importance of girls education.

1:05 Historic Treatment of Children

The emergence of the concept of child rights took place during the 20th century. This shifted the focus from the child welfare to child rights and and this approach also implied obligations and

goals. The emergence of child rights is mainly associated with issues of the social justice, non-discrimination, equality and empowerment. Child rights have ever since come a long way, and many laws have been formulated for uplifting the status of children in India. Government along with other institutions like UNICEF has been tirelessly working in formulation and implimentation of policies for protection and overall growth of children in India.

1:05:1 Treatment of Children Upto the Medieval Age

The Indian culture, since ancient times has been based on traditional values of sacrifice, mercy, donation, non-violence and equality. The Vedas, Upanishads and Arthashastra bear in them the concepts of equal rights to men and women, sympathetic concern for women and children and unprejudiced treatment of all human beings in the society. In ancient Indian law, the child though located at the bottom of a social pyramid, was bestowed with the protection of the society. Children were only the recipients of welfare measures and the father was the sole guardian of

a child. Persistent bias in the nurturing of children in India is clearly indicated in the historical records. Numerous factors including age of children, gender of child, their caste and kinship led to the biased behaviour against children in India, during post vedic period.

The medieval age ranging from 11th to 17th centuries almost, due to the arrival of the Arabs, Turks, Afghans and the Mughals, witnessed aggravated misery and deterioration in India. The wealth and social cultural philosophy of India was completely plundered and destroyed by foreign invasions. Children faced adverse circumstances because of the overall economic deterioration borne by the people. Families, particularly in rural India, were not able to afford nutritious food and other basic facilities for their children. Focus on basic education slowly faded away, that was very prevalent previously. Elementary education among the Hindus was given to those belonging to the higher castes like Brahmins and Kshatriyas. Among the Muslims, basic education was confined to those belonging to upper-class families, provided by the Maulvis. Girls were rarely given education and their status remained inferior in

comparison to boys. No steps were taken by either the rulers or people to curtail the situation.

1:05:2 Treatment of Children During the British Period in India

The troubles of children, particularly to those belonging to families of lower income group or lower class of Indian society during the British rule, in no way decreased and their plight continued. This time period brought the economic, social and political chaos throughout the nation, thus posing great plight and uncertainty for the nation and children were worse impacted during those time. The atrocities towards children like inflicting physical punishment were perpetuated during the growth of British imperialism, and children were oppressed in all possible forms.

1:05:3 Treatment of Children in India During Freedom Struggle and in Post-Independent Period

The freedom struggle spread over a century, intended not only to achieve independence from the Britishers, but also to revitalize the incapacitated Indian culture which under decades of slavery had lost its culture, ideals and vitality.

The great efforts and initiatives undertaken by leaders like **Mahatma Gandhi**, **Lala Lajpathy Rai**, **Lal Bahadur Shastri**, stimulated Indians and awakened them to conquer their orthodox opinions on various forms like illiteracy, socio-cultural practices like child marriage or neglected upbringing of children, etc. As a result, freedom struggle encompassed activities which are called "**Social action**" to overcome the customary weakness in society and develop self-reliant attitude in Indians. Therefore the proper upbringing of the child emerged as significant, came to be viewed as an essential factor in the restoration of the nation. Social concerns for children gained significance during the formulation of Indian Constitution. For proper structuring and shaping of children's future in India, various laws (like Apprentices Act, Reformatory Schools Act, etc.) were the initial effective steps that came into being for creating suitable environment for children to grow and develop.

Britain and other other countries of Europe and North America faced a variety of challenges due to **First World War**. In 1923, a five-point declaration was adopted by the '**Save the Children Inter-**

national Union' as its charter. It described the basic conditions a society should adopt to provide sufficient protection and care for its children. The Union persuaded the **League of Nations** to adopt the same declaration in the next year. The 1924 '**Declaration of Rights of the Child**' was known as the '**Declaration of Geneva**', as the meeting of League of Nations was held in **Geneva**.

Declaration of Geneva, in its five chapters identified and discussed the welfare of children and acknowledged the responsibilities of adults for providing support to the right to development, support, growth and protection to children. The Geneva document is a remarkable document, which acknowledged and declared the existence of rights specific to children and the responsibility of adults towards children, for the first time.

1:05:4 Establishment of UNICEF

Second world war caused indescribable sufferings to children across the globe. U.N.O. on 11, December 1946 established a specialised agency – The United Nations International Children's Emergency Fund (UNICEF) with a directive to provide care and protection to the children of the entire world, particularly for those who became

homeless, lost family and any prospect for care and protection, due to war. Its mandate was redefined in October 1953, to provide long term assistance to deprived children resulting from economic and political turmoil due to conflicts and war. Presently, UNICEF is known as '**UNITED Nations Children's Fund**'.

UNICEF has been operating in India since 1969. Since then, UNICEF has been an active partner of the Government in organising various programmes and activities for growth and development of children in India.

Government of India in collaboration with UNICEF run various programmes to support child rights, rights of teenagers and women for their basic survival, all round growth, upliftment, constant participation and most importantly their protection by reducing inequalities based on caste, customs, gender, financial status, region or religion prevailing in society.

1:06 Understanding Child Rights from the Perspective of the Affected People

Compared to any other group in the society, children suffer the most from human rights

violations because they lack self-defence and depend on others. As such, they are the easy prey to offences committed by adults such as child-labour involving severe manual work; sexual exploitation, human trafficking etc.

A broad range of research on children's views on their rights and their recommendations for improving their enjoyment of those rights, obtained from across Eūrope, was reviewed. The findings obtained highlighted the following themes, as most important as revealed by children's views.

Violence: Children report experiencing high levels of violence in the home and elsewhere. They wish to be believed and supported where they report it. They give recommendations on how to tackle it, such as ending physical punishment, services better suited to children's needs, and greater control over action taken to deal with the problems they report.

Child-Friendly Justice: Children wish to receive more information on their rights in the justice system, and authorities must seek ways to help children to trust those working in the system. Children should not be in custody; alternatives

such as community service should be used instead. Children in custody have numerous recommendations for improving living conditions, which are often dire in less industrialised countries. Children of prisoners require explicit acknowledgement and assistance.

Child Participation: Although children strongly believe that they should have a say in the key decisions that affect their lives, they face a range of obstacles in this regard, such as over- complex procedures and adult indifference. A wide range of mechanisms should be developed to facilitate participation across different groups and contexts, and children should always get feedback on how and whether their views have had an impact.

Children in Care: Being heard is of huge importance to children in care, but many feel that they are not listened to. Children think that better supports and interventions are necessary to avoid children being taken into care and to ensure the best care experience possible. Children in care, place great emphasis on the quality of their placement, and on retaining links with birth families.

Discrimination: Children suffer discrimination on various bases, and can therefore suffer 'double discrimination' – i.e. on the basis of childhood and their other status. Discrimination against children on the basis of age is little understood or acknowledged and it should be tackled through awareness-raising and legislation. Children from disadvantaged groups such as cultural and racial minorities and children with disabilities wish for greater understanding of their experiences and cultures.

Education: Children want more opportunities to participate at school and on decisions concerning their education. Children from disadvantaged groups are especially concerned about education and require special measures to facilitate their participation. Bullying at school is an issue of huge concern to many children. It could be tackled through more opportunities to discuss it and better responses from teachers.

Child Poverty and Austerity: Children are concerned about the current economic climate and the impact it may have on their own financial situation and that of their families. Their recommendations in the area include: Better work-based

training and employment opportunities for young people; welfare systems which ensure adequate incomes and security for those out of work; and free services such as youth and leisure centres. Children want to be included in decision-making about government expenditure.

There are universal themes which emerge from the variety of views and experiences included here. First, children in Europe overwhelmingly wish to be heard and to have some influence on matters regarding their rights. Although there are some very good initiatives which seek to involve children, many are tokenistic and children quickly become disillusioned. Secondly, children enormously value their families and friends, and this has consequences for the enjoyment of their rights: Service providers should think about how to better involve family where children require information about legal proceedings, for example. Thirdly, children recognize that adequate protection of rights requires sufficient allocation of public resources, particularly targeting more marginalised groups. They are concerned about the current economic climate and cuts in expenditure. Resources are highly relevant to

children's recommendations on improving rights provision, as they wish to see education and training of professionals and others to ensure that they facilitate and understand children's rights across many areas.

1:07 Importance and Need to the Rights of Children

There are many reasons for singling out children's rights in a separate human rights convention.

1. Children are individuals

Children are neither the possessions of parents, nor of the State, nor are they mere people-in-the-making; they have equal status as members of the human family.

2. Children start life as totally dependent beings

Children must rely on adults for the nurture and guidance they need to grow towards Independence. Such nurture is ideally found from adults in children's families, but when primary adult caregivers cannot meet children's needs, it is up to the State as the primary duty bearer to find an alternative in the best interests of the child.

3. The actions, or inactions, of government impact children more strongly than any other group in society

Practically every area of government policy - from education to public health - affects children to some degree. Short-sighted policymaking that fails to take children into account has a negative impact on the future of all members of society.

4. Children's views should be heard and considered in the political process

Children generally do not vote and do not traditionally take part in political processes. Without special attention to the opinions of children - as expressed at home and in schools, in local communities and even in governments - children's views go unheard on the many important issues that affect them now or will affect them in the future.

5. Many changes in society are having a disproportionate, and often negative, impact on children

Transformation of the family structure, globalization, climate change, digitalization, mass migration, shifting employment patterns and a shrinking

social welfare net in many countries all have strong impacts on children. The impact of these changes can be particularly devastating in situations of armed conflict and other emergencies.

6. The healthy development of children is crucial to the future well-being of any society

As children are still in the process of developing, they are highly vulnerable - more so to adults - poor living conditions such as poverty, inadequate health care, nutrition, safe water and housing, and environmental pollution. The effects of disease, malnutrition, and poverty threaten the future of children and therefore the future of the societies in which they live.

7. The Costs to society of failing its children are huge

Social research findings show that children's earliest experiences significantly influence their future development, determine their contribution, or cost to society, over the course of their lives.

1:08 United Nations Convention on the Rights of the Child (UNCRC)

The Declaration of the Rights of the Child (DRC) was endorsed and adopted by the United

Nations General Assembly in 1959. The DRC describes 10 principles of child rights. However, all the countries did not sign this document. Therefore these ten principles only provided an indicative value. **The DRC paved the way to the Universal Declaration of Children Rights, which is popularly known as the United Nations Convention on the Rights of the Child (UNCRC). The UN General Assembly unanimously adopted UNCRC on 20th November 1989.** This became the first internationally recognized instrument that described all the fundamental child rights. **The UNCRC gave legal expression to the conception of child rights.** It declared that children have independent political, economic and social decision-making rights similar to those of adults. **The economic, social and cultural rights, of the children are described in its 54 articles. It highlights the basic principles of non-discrimination, best interests of the child, right to life, survival and growth and concern for the views of child.** It also describes the specific civil rights and freedom; family environment and alternative care; basic health and welfare; education, leisure and cultural activities; and special protection measures.

1:08:1 Articles in the UNCRC

Article in the UNCRC are presented below, with brief description.

ARTICLE 1 (definition of the child): Everyone under the age of 18 has all the rights in the Convention.

ARTICLE 2 (non-discrimination): The Convention applies to every child without discrimination, whatever their ethnicity, sex, religion, language, abilities or any other status, whatever they think or say, whatever their family background.

ARTICLE 3 (best interests of the child): The best interests of the child must be a top priority in all decisions and actions that affect children.

ARTICLE 4 (implementation of the Convention): Governments must do all they can to make sure every child can enjoy their rights by creating systems and passing laws that promote and protect children's rights.

ARTICLE 5 (parental guidance and a child's evolving capacities): Governments must respect the rights and responsibilities of parents and carers to

provide guidance and direction to their child as they grow up, so that they fully enjoy their rights. This must be done in a way that recognises the child's increasing capacity to make their own choices.

ARTICLE 6 (life, survival and development): Every child has the right to life. Governments must do all they can to ensure that children survive and develop to their full potential.

ARTICLE 7 (birth registration, name, nationality, care): Every child has the right to be registered at birth, to have a name and nationality, and, as far as possible, to know and be cared for by their parents.

ARTICLE 8 (protection and preservation of identity): Every child has the right to an identity. Governments must respect and protect that right, and prevent the child's name, nationality or family relationships from being changed unlawfully.

ARTICLE 9 (separation from parents): Children must not be separated from their parents against their will unless, it is in their best interests (for example, if a parent is hurting or neglecting a child). Children whose parents have separated

have the right to stay in contact with both parents, unless this could cause them harm.

ARTICLE 10 (family reunification): Governments must respond quickly and sympathetically if a child or their parents apply to live together in the same country. If a child's parents live apart in different countries, the child has the right to visit and keep in contact with both of them.

ARTICLE 11 (abduction and non-return of children): Governments must do everything they can to stop children being taken out of their own country illegally by their parents or other relatives, or being prevented from returning home.

ARTICLE 12 (respect for the views of the child): Every child has the right to express their views, feelings and wishes in all matters affecting them, and to have their views considered and taken seriously. This right applies at all times, for example during immigration proceedings, housing decisions or the child's day-to-day home life.

ARTICLE 13 (freedom of expression): Every child must be free to express their thoughts and opinions and to access all kinds of information, as long as it is within the law.

ARTICLE 14 (freedom of thought, belief and religion): Every child has the right to think and believe what they choose and also to practise their religion, as long as they are not stopping other people from enjoying their rights. Governments must respect the rights and responsibilities of parents to guide their child as they grow up.

ARTICLE 15 (freedom of association): Every child has the right to meet with other children and to join groups and organisations, as long as this does not stop other people from enjoying their rights.

ARTICLE 16 (right to privacy): Every child has the right to privacy. The law should protect the child's private, family and home life, including protecting children from unlawful attacks that harm their reputation.

ARTICLE 17 (access to information from the media): Every child has the right to access to reliable information from a variety of sources, and governments should encourage the media to provide information that children can understand. Governments must help protect children from materials that could harm them.

ARTICLE 18 (parental responsibilities and state assistance): Both parents share responsibility for bringing up their child and should always consider what is best for the child. Governments must support parents by creating support services for children and giving parents the help they need to raise their children.

ARTICLE 19 (protection from violence, abuse and neglect): Governments must do all they can to ensure that children are protected from all forms of violence, abuse, neglect and bad treatment by their parents or anyone else who looks after them.

ARTICLE 20 (children unable to live with their family): If a child cannot be looked after by their immediate family, the government must give them special protection and assistance. This includes making sure the child is provided with alternative care that is continuous and respects the child's culture, language and religion.

ARTICLE 21 (adoption): Governments must oversee the process of adoption to make sure it is safe, lawful and that it prioritises children's best interests. Children should only be adopted outside

of their country if they cannot be placed with a family in their own country.

ARTICLE 22 (refugee children): If a child is seeking refuge or has refugee status, governments must provide them with appropriate protection and assistance to help them enjoy all the rights in the Convention. Governments must help refugee children who are separated from their parents to be reunited with them.

ARTICLE 23 (children with a disability): A child with a disability has the right to live a full and decent life with dignity and, as far as possible, independence and to play an active part in the community. Governments must do all they can to support disabled children and their families.

ARTICLE 24 (health and health services): Every child has the right to the best possible health. Governments must provide good quality health care, clean water, nutritious food, and a clean environment and education on health and well-being so that children can stay healthy. Richer countries must help poorer countries to achieve this.

ARTICLE 25 (review of treatment in care): If a child has been placed away from home for the purpose of care or protection (for example, with a foster family or in hospital), they have the right to a regular review of their treatment, the way they are cared for and their wider circumstances.

ARTICLE 26 (social security): Every child has the right to benefit from social security. Governments must provide social security, including financial support and other benefits, to families in need of assistance.

ARTICLE 27 (adequate standard of living): Every child has the right to a standard of living that is good enough to meet their physical and social needs and support their development. Governments must help families who cannot afford to provide this.

ARTICLE 28 (right to education): Every child has the right to an education. Primary education must be free and different forms of secondary education must be available to every child. Discipline in schools must respect children's dignity and their rights. Richer countries must help poorer countries to achieve this.

ARTICLE 29 (goals of education): Education must develop every child's personality, talents and abilities to the full. It must encourage the child's respect for human rights, as well as respect for their parents, their own and other cultures, and the environment.

ARTICLE 30 (children from minority or indigenous groups): Every child has the right to learn and use the language, customs and religion of their family, whether or not these are shared by the majority of the people in the country where they live.

ARTICLE 31 (leisure, play and culture): Every child has the right to relax, play and take part in a wide range of cultural and artistic activities.

ARTICLE 32 (child labour): Governments must protect children from economic exploitation and work, that is dangerous or might harm their health, development or education. Governments must set a minimum age for children to work and ensure that work conditions are safe and appropriate.

ARTICLE 33 (drug abuse): Governments must protect children from the illegal use of drugs and

from being involved in the production or distribution of drugs.

ARTICLE 34 (sexual exploitation): Governments must protect children from all forms of sexual abuse and exploitation.

ARTICLE 35 (abduction, sale and trafficking): Governments must protect children from being abducted, sold or moved illegally to a different place, in or outside their country for the purpose of exploitation.

ARTICLE 36 (other forms of exploitation): Governments must protect children from all other forms of exploitation, for example the exploitation of children for political activities, by the media or for medical research.

ARTICLE 37 (inhuman treatment and detention): Children must not be tortured, sentenced to the death penalty or suffer other cruel or degrading treatment or punishment. Children should be arrested, detained or imprisoned only as a last resort and for the shortest time possible. They must be treated with respect and care, and be able to keep in contact

with their family. Children must not be put in prison with adults.

ARTICLE 38 (war and armed conflicts): Governments must not allow children under the age of 15 to take part in war or join the armed forces. Governments must do everything they can to protect and care for children affected by war and armed conflicts.

ARTICLE 39 (recovery from trauma and reintegration): Children who have experienced neglect, abuse, exploitation, torture or who are victims of war must receive special support to help them recover their health, dignity, self-respect and social life.

ARTICLE 40 (juvenile justice): A child accused or guilty of breaking the law must be treated with dignity and respect. They have the right to legal assistance and a fair trial that takes account of their age. Governments must set a minimum age for children to be tried in a criminal court and manage a justice system that enables children who have been in conflict with the law to reintegrate into society.

ARTICLE 41 (respect for higher national standards): If a country has laws and standards that go further than the present Convention, then the country must keep these laws.

ARTICLE 42 (knowledge of rights): Governments must actively work to make sure children and adults know about the Convention.

The Convention has 54 articles in total. Articles 43–54 are about how adults and governments must work together to make sure all children can enjoy all their rights.

ARTICLE 45: UNICEF can provide expert advice and assistance on children's rights.

OPTIONAL PROTOCOLS : There are three agreements, called Optional Protocols, that strengthen the Convention and add further unique rights for children. They are optional because governments that ratify the Convention can decide whether or not to sign up to these Optional Protocols. They are: the Optional Protocol on the sale of children, child prostitution and child pornography; the Optional Protocol on the involvement of children in armed conflict; and the

Optional Protocol on a complaints mechanism for children (called Communications Procedure).

1:08:2 The Nine Parts Under Which the 42 Articles are Placed

- Part I – General Principles**
(Article No. 2, 3, 6 & 12)
- Part II – Civil and Political Rights**
(Article No. 7, 8, 13, 14, 15, 16 & 17)
- Part III – Family Environment and Alternative Care Rights**
(Article No. 5, 9, 10, 11, 18, 20, 21 & 25)
- Part IV – Disability, Health, and Welfare Rights**
(Article No. 23, 24, 26, 27 & 33)
- Part V – Education, Leisure, and Cultural Activities Rights**
(Article No. 28, 29, 30 & 31)
- Part VI – Protection Measures from Violence**
(Article No. 19, 37 & 39)
- Part VII – Protection Measures from Exploitation**
(Article No. 32, 34 & 36)
- Part VIII – Protection Measures for Children in Vulnerable Situations**
(Article No. 22, 35, 38 & 40)

Part IX – General Measures of Implementation

[Article No. 1, 4, 42 & 44 (6)]

Note : [If students can not remember all the 42 Articles, they should be thorough with Articles 19, 20, 23, 24, 28, 32, 33, 34, 35, 36, 38 and 40]

1:09 The Millennium Development Goals and Sustainable Development Goals

1:09:1 The Millennium Development Goals (MDGs)

The United Nations Millennium Development Goals (MDGs) are the eight goals set by the 189 UN member states in September 2000 and agreed to try to achieve by the year 2015. **The Millennium Declaration was signed at the September global summit held at the UN headquarters in New York and the 149 international leaders in attendance committed to combating disease, hunger, poverty, illiteracy, discrimination against women and environmental degradation. The MDGs were derived from this Declaration, and specific indicators to monitor progress from 1990 levels and targets to be achieved were attached to them. Several of these MDGs relate directly to health.**

The following are the eight Millennium Development Goals:

1. to eradicate extreme poverty and hunger;
2. to achieve universal primary education;
3. to empower women and promote gender equality;
4. to reduce child mortality;
5. to promote maternal health;
6. to fight malaria, HIV/AIDS, and other diseases;
7. to ensure environmental sustainability; and
8. to develop a global partnership for development.

First seven goals are mutually reinforcing and directed at reducing poverty in all its forms. **Totally there are 21 targets attached to the above mentioned 8 MDGs.**

1:09:2 Targets of Millenium Development Goals

Millennium Development Goal 1 has three targets:

1. To halve the proportion of people whose daily income is less than \$1.25.
2. To achieve full and productive employment, as well as decent work for all, including young people and women.

3. To halve the proportion of individuals suffering from hunger in the period between 1990 and 2015.

There is only one target for millennium development goal 2:

1. To ensure that children universally—including both boys and girls – will be able to complete a full course of primary education by 2015.

There has only one target under millennium development goal 3:

- To eliminate gender disparity in primary and secondary education by 2005, and in all levels of education by 2015.

The Millennium Development Goal 4 has only one target:

- To reduce the under-five mortality rate by two-thirds in the period between 1990 and 2015.

Millennium development goal 5 has two targets:

1. To reduce the maternal mortality ratio by 75 percent.
2. To achieve universal access to reproductive health.

Millennium Development Goal 6 has three targets:

1. To halt by 2015 and have started to reverse the spread of HIV/AIDS.
2. To achieve universal access to treatment for HIV/AIDS for all those who need it, by 2010.
3. To have halted by 2015 and started reversal of the incidence of malaria and other major diseases.

Millennium development goal 7 has 4 targets:

1. To integrate the principles of sustainable development into every nation's policies and programmes, and also reverse the depletion of environmental resources.
2. To reduce biodiversity loss and achieve a substantial reduction in the rate of loss by 2010.
3. To halve by 2015, the proportion of the universal population without sustainable access to clean and safe drinking water and basic sanitation.
4. To achieve substantial improvement in the lives of a minimum of 100 million slum dwellers by 2020.

Millennium development goal 8 has 6 targets that seek to develop global partnership for development, namely:

- To further develop an open, predictable, rule-based, non-discriminatory trading and economic system
- To address the special needs of the least developed countries
- To address the special needs of small island developing States and landlocked developing countries
- To deal exhaustively with the debt problems of developing nations
- To provide access to affordable essential drugs in the developing countries, in collaboration with pharmaceutical companies
- To avail benefits of new technologies, especially information and communications, in collaboration with the private sector.

The MDGs have been superseded by “Sustainable Development Goals”.

1:09:3 Sustainable Development Goals (SDGs)

At the historic U.N. General Assembly summit in September 2015, the 2030 agenda for sustainable development was adopted by U.N.'s 193 member States. The 17 Sustainable Development Goals and their 169 targets are part of this agenda.

The ‘Sustainable Development Goals’, also known as ‘**Global goals**’ are bold universal agreement to end poverty and all its dimensions and craft an equal, just and secure world for people and planet, and ensure that by 2030 all people enjoy peace and prosperity.

The Sustainable Development Goals have been developed through an unprecedented consultative process that brought national governments and millions of citizens from the globe together to negotiate and adopt this ambitious agenda.

5Ps of sustainable development are:
 (1) Planet, (ii) People, (iii) Prosperity (iv) Peace and
 (v) Partnership. **The four major components of**

Sustainable Development are: (i) Human, (ii) Social (iii) Economic, and (iv) Environment.

The 17 SDGs are integrated — they recognize that action in one area will affect outcomes in others, and that development must balance social, economic and environmental sustainability.

Countries have committed to prioritize progress for those who are furthest behind. The SDGs are designated to end poverty, hunger, AIDS, and discrimination against women and girls.

The creativity, knowhow, technology and financial resources from all of society is necessary to achieve the SDGs in every context.

1:09:3:01 Definition of Sustainable Development Goals

“Sustainable Development Goals (SDGs) are a set of global goals for fair and sustainable health at every level from planetary biosphere to local community. The aim is to end poverty, protect the planet and ensure all people enjoy peace and prosperity, now and then in future”.

1:09:3:02 The 17 Sustainable Development Goals to Transform our World

The 17 SDGs are given below:

- Goal I : No Poverty**
End poverty in all its forms everywhere. This goal has 7 targets.
- Goal II : Zero Hunger**
End hunger, achieve food security and improved nutrition, and promote sustainable agriculture.
This goal has 8 targets.
- Goal III : Good Health and Well-being.**
Ensure healthy lives and promote well-being for all, at all ages.
This goal has 13 targets.
- Goal IV : Quality Education**
Ensure Inclusive and Equitable Quality Education and Promote Lifelong Learning Opportunities.
This goal has 10 targets.
- Goal V : Gender Equality**
Achieve Gender Equality and Empower all Women and Girls.
This goal has 9 targets.

Goal VI : Clean Water and Sanitation

Ensure availability of sustainable management of water and sanitation for all.

This goal has 8 targets.

Goal VII : Affordable and Clean Energy

Ensure access to affordable, reliable, sustainable clean energy (which does not pollute the environment).

This goal has 5 targets.

Goal VIII : Decent Work and Economic Growth

Promote sustained, inclusive and sustainable economic growth and productive employment and decent work for all.

This goal has 12 targets.

Goal IX : Industry Innovation and Infrastructure

Build resilient infrastructure, promote inclusive and sustainable industrialization and foster innovation.

This goal has 8 targets.

Goal X : Reduced Inequalities

Reduce inequalities within and among countries.

This goal has 10 targets.

Goal XI : Sustainable Cities and Communities

Make cities and human settlements inclusive, safe, resilient and sustainable.

This goal has 10 targets.

Goal XII : Responsible Consumption and Production

Ensure sustainable consumption and production pattern.

This goal has 11 targets.

Goal XIII : Climate Action

Take urgent action to combat climate change and its impacts.

This goal has 5 targets.

Goal XIV : Life Below Water

Conserve and sustainably use the oceans, seas and marine things for sustainable development.

This goal has 10 targets.

Goal XV : Life on Land

Protect, restore and promote sustainable use of terrestrial ecosystems, sustainably manage forests, combat desertification, halt and reverse land degradation, and halt biodiversity loss. This goal has 12 targets.

Goal XVI : Peace, Justice and Strong Institutions

Promote peaceful inclusive societies for sustainable development, provide access to justice for all and build effective, accountable and inclusive institutions at all levels.

This goal has 12 targets.

Goal XVII : Partnerships for the Goals

Strengthen the means of implementation and revitalize the global partnership for sustainable development.

This goal has 19 targets.

All together there are 17 SDGs and 169 targets for sustainable development.

1:10 Child Rights and Sustainable Development Goals

The 2030 Agenda for Sustainable Development represents the highest aspirations for a bright future for the world's children and is a crucial opportunity to realize the rights of the child worldwide. It provides a clear framework for implementation and aims to improve children's lives through a universal agenda with clear goals and targets. Fulfilling children's rights is a prerequisite for reaching the 2030 Agenda.

Considerable progress has been made towards the Sustainable Development Goals (SDGs) since 2015. Children are in better health and stay in education for longer, and the under-5 mortality rate fell to 39 deaths per 1000 live births in 2017, a 6.7% decrease from 2015. However, progress remains slow. Conflicts, environmental, financial, health and humanitarian crises place children at risk of multiple right violations, violence, marginalisation and discrimination. More than half of children and adolescents do not meet literacy and numeracy standards, and an estimated 250 million children under-5 in low and

middle income countries may not reach development potential. Furthermore, children are more than twice as likely as adults to live in poverty. Overall, 945 million children live in countries where S.D.G.s remain out of reach. Without accelerated action, systematic and concrete implementation, the SDGs will not be met by 2030 and children will continue to be left behind

The 2030 Agenda reaffirms States' obligations regarding children's rights by framing implementation in line with obligations to respect, protect and fulfil human rights. The application of human rights standards and principles, including the United Nations Convention on the Rights of Child and its optional protocols, are also a crucial means through which the SDGs can be achieved.

In 2017, pursuant to Human Rights Council resolution 31/7, the Office of High Commissioner for Human Rights (OHCHR) presented a report on the protection of rights of the child in the implementation the 2030 Agenda. It established the interlinked nature of the rights of the child and the 2030 Agenda, highlighting that all SDGs and targets, while not explicitly naming children, are linked to promoting children's rights.

At the 2019 Sustainable Development Goals Summit, States called for multi-level and multi-stake holder accelerated action to ensure that no one is left behind. Human and children's rights are essential accelerators for implementing the SDGs. The 2030 Agenda has integrated human rights into its goals and targets. Therefore, respecting, protecting and fulfilling human rights can act as a catalyst for implementing the Agenda and a driver for change in sustainable development. The child rights and sustainable development agendas are mutually-reinforcing. Children's rights can guide effective delivery, in which all children, including those marginalised and at great risk of being left behind, are reached. A rights-based approach to sustainable development can strengthen human rights implementation at all levels and advance children's rights.

Child rights-based Approach to the 2030 Agenda

In order to ensure that children's rights are fully realized and that children are not left behind in the implementation of the SDGs, a systematic child rights-based approach with the **Convention on the Rights of the Child** at the centre is required.

Child's rights principle should guide the Agenda's implementation, particularly non-discrimination, the best interests of the child, the right to the life, survival and development and participation. States must adopt a comprehensive approach prioritizing children's rights and integrating them into the formulation, planning, implementation, monitoring, follow-up and review of development frameworks, policies, programmes and projects.

A child rights-based approach is multi-pronged, multi-level, realizes all civil, cultural, economic, political and social rights, and recognizes the inherent links between sustainable development and children's rights. States should ensure child participation, involve national human rights institution and conduct child rights impact assessment that examine the effects of proposed actions on children and fully respect children's rights.

Children as Agents of Change in the 2030 Agenda

The 2030 Agenda emphasizes the participation of rights-holders as partners in implementation. It recognizes children's role as active citizens in the society and social transformation and ensures

their right to participate in actions and decision-making processes affecting them, in accordance with their age and maturity. Child participation is essential for the successful implementation of universal sustainable development that leaves no child behind. Children should be systematically involved in SDG processes, implementation, and monitoring, and in policy and programme design.

Leaving No Child Behind

A critical element of the 2030 Agenda is the commitment to "leave no one behind", especially those in vulnerable situations. This includes children. By pledging to leave no one behind, States are committed to ensure equality and reduce inequalities, including through eliminating discriminatory laws, policies and practices. This principle is grounded in the human rights principles of non-discrimination, equality and dignity, and provides an entry point for protecting and promoting the rights of the child. Sustainable development frameworks, strategies, policies and programmes must integrate children's rights to ensure that no child is left behind.

Conclusion

In this unit, Concept and definition of Child, Child rights, Definition of Child under various laws in India, History of child rights in Tamilnadu and India, Non-Governmental organisations working for child rights in Tamilnadu and India, Historic treatment of children, Understanding child's right from the perspective of affected people i.e. children, Importance and need for the rights of children, United Nations Convention on the Rights of the Child (UNCRC) viz. the 54 Articles with respect to Child's Rights stated in UNCRC, The Millennium Development Goals consisting of 8 MDGs and 21 targets related to them, Sustainable Development Goals consisting of 17 SDGs and their 169 targets, Children's rights and SDGs have been discussed in detail.

Review Questions:

I. Objective Type Questions

- As per the UNCRC, a child is defined as a human-being
 - between the development period of infancy and puberty
 - below the age of majority
 - below the age of 18
 - below the age of 14

[Ans: (iii)]
- According to the UNCRC, the four basic child rights are : right to survival, right to protection, right to development and right to
 - Right to Participation
 - Right to Equality
 - Right to dignity
 - Right to Education

[Ans: (i)]
- UNCRC was adopted by UN General Assembly in the year

(i) 1959 (ii) 1969 (iii) 1979 (iv) 1989 [Ans: (iv)]
- The United Nations Millennium Development Goals are the eight goals set by the 189 member States in the year

(i) 2000	(ii) 1990
(iii) 1999	(iv) 2001

[Ans: (i)]

5. SDGs consists of 17 Goals and their targets
(i) 21 (ii) 34 (iii) 169 (iv) 141 [Ans: (iii)]
6. MDGs consists of Goals and their 21 targets
(i) 10 (ii) 12 (iii) 11 (iv) 8 [Ans: (iv)]
7. The U.N.O. declared the year _____ as the International year of the Child.
(i) 1975 (ii) 1977 (iii) 1979 (iv) 1981 [Ans: (iii)]

II Short Answer Type Questions:

8. Give a suitable definition for the term 'Child' and explain the concept of 'Child rights'. [Ans: The last paragraph in 1:01:1 + 1:01:2]
9. Present the definition of 'child' under various laws in India. [Ans: 1:02]
10. Trace the history of child rights in Tamilnadu. [Ans: 1:03:1]
11. Briefly state the child-rights in India. [Ans: 1:01:3]
12. Explain the 'Tamilnadu State Policy for Children, 2021'. [Ans: 1:03:1:01]
13. State the significance of 'Tamilnadu State Policy for Children, 2021'. [Ans: 1:03:1:02]

14. Briefly explain some of the important NGOs working for child rights in Tamilnadu. [Ans: 1:04:1]
15. Briefly explain some of the noted NGOs working for child rights in India. [Ans: 1:04:2]
16. Explain the importance of and need for the rights of children. [Ans: 1:07]
17. What are the Millennium Development Goals? [Ans: 1:09:1]
18. What are the Sustainable Development Goals? Briefly state them. [Ans: 1:09:2 + 1:09:2:01 + In 1:09:2:02, only the headings of the 17 goals]

III Essay Type Questions

19. Explain the concept of child and state the definition of 'child' under various laws in India. [Ans: 1:01:1 + 1:02]
20. Explain the concept and definition of 'Child rights'. State the child-rights in India. [Ans: 1:01:2 + 1:01:3]
21. Trace the history of child rights in Tamilnadu and state the significance of 'Tamilnadu State Policy for Children, 2021'. [Ans: 1:03:1 + 1:03:1:01 + 1:03:1:02]